

## 25STCV15082 25STCV15082

County: los-angeles

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Case Number: 25STCV15082 Hearing Date: July 2, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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SOCIALLY ORIENTED UNITED LIVING, INC.,

Plaintiff(s),

vs.

DAVID

SHIELD SECURITY, INC., et al.,

Defendant(s).

Case No.:

25STCV15082

Hearing Date:

July 2, 2026

[TENTATIVE]

ORDER RE: APPLICATION FOR WRIT OF ATTACHMENT

Defendant and cross-complainant

David Shield Security, Inc. ("Defendant") seeks a writ of attachment against plaintiff and cross-defendant Socially Oriented United Living, Inc. ("Plaintiff").

The application is granted.

I.

Background

1. Factual Background

Defendant is registered and licensed by the California Bureau of Security and Investigative Services to provide security services and provides trained security officers at facilities around the Los Angeles area. (Bazaz Decl., ¶ 3.)

In September 2024, Plaintiff and Defendant executed a Security Services Agreement ("Agreement"). (Bazaz Decl., ¶ 6, Ex. A.) The Agreement provided for Defendant to provide security officers at Plaintiff's Hyland facility. (Bazaz Decl., ¶ 6.) The Agreement further provided that the Hyland facility would be the first facility for which Defendant would provide services and staffing, with the "mutual intention" that Defendant would later provide security services at other Plaintiff facilities. (Bazaz Decl., ¶ 6.) Under the Agreement, the parties agreed to a three-year service period to terminate September 22, 2027, after which the Agreement would automatically renew for one-year terms. (Bazaz Decl., ¶ 7.)

Any party could terminate the Agreement with a 30-day notice. (Bazaz Decl., ¶ 7.) For Plaintiff to terminate with less than the required 30-day notice, Plaintiff must provide a written notice of claimed performance deficiencies. (Bazaz Decl., ¶ 7.) Defendant would then have a 15-day opportunity to cure the deficiencies. (Bazaz Decl., ¶ 7.) If Defendant were to cure the deficiencies, the Agreement would remain in force. (Bazaz Decl., ¶ 7.) Otherwise, Plaintiff could then immediately terminate the Agreement. (Bazaz Decl., ¶ 7.)

Plaintiff agreed to pay \$55 hourly for Armed Shift Supervisors, \$50 hourly for Armed officers, and \$38

hourly for Unarmed Officers. (Bazaz Decl., ¶ 8.) All security officers would be billed for a minimum of eight hours, and would receive meal and rest breaks. (Bazaz Decl., ¶ 8.) Defendant agreed to invoice Plaintiff every 14 days, and Plaintiff agreed to pay invoices within 15 days. (Bazaz Decl., ¶ 8.) Defendant was responsible under the Agreement for hiring, training, and licensing obligations for guards at Plaintiff's facilities, including determining staffing levels. (Bazaz Decl., ¶ 9.)

Starting September 23, 2024, Defendant provided security officers and services to Plaintiff. (Bazaz Decl., ¶ 5.) Eitan Bazaz ("Bazaz"), President of Defendant, was Defendant's primary contact for Plaintiff's upper management, consisting of President Yigal Keren ("Keren"), Chief Executive Officer Eric Schames ("Schames"), and Chief Operations Officer Casey Reinholtz ("Reinholtz"). (Bazaz Decl., ¶ 5.) Bazaz primarily spoke with Reinholtz when discussing facility operations, staffing levels, officer assignments, guard performances, Defendant's practices, policies, and procedures, and issues related to facility staff and tenants, including complaints and investigations. (Bazaz Decl., ¶ 5.)

Defendant continued to provide security services until March 2025. (Bazaz Decl., ¶ 10.) Within 3 months, Plaintiff increased the number of facilities for which Defendant provided services from three to 16. (Bazaz Decl., ¶ 10.) Ultimately, Defendant provided security services 24 hours daily, seven days weekly, through over 130 trained guards logging a total of 4,600 hours weekly. (Bazaz Decl., ¶ 10.)

Defendant received complaints about guards sleeping during the service term. (Bazaz Decl., ¶ 15.) Defendant characterizes those complaints as isolated, and most of the complaints as unsubstantiated. (Bazaz Decl., ¶ 15.) Defendant investigated complaints that guards were sleeping on shift and determined in most cases that the guards were on break, not while on duty. (Bazaz Decl., ¶ 16.) Defendant argues that all but one of Plaintiff's facilities lacked any designated break location, and therefore Plaintiff staff and residents were unaware that sleeping guards were on break. (Bazaz Decl., ¶ 17.)

Defendant also received complaints about guards using cell phones while on duty. (Bazaz Decl., ¶ 18.) Defendant contends the guards were using their cell phones for work-related purposes, including documenting violations and other situations affecting the

safety of tenants, staff, and guards, as well as internal communications.

(Bazaz Decl., ¶ 18.)

Defendant investigated any

complaints Plaintiff reported and communicated its findings to Plaintiff.

(Bazaz Decl., ¶ 19.) Where Defendant found the complaints substantiated, it administered discipline. (Bazaz Decl., ¶ 19.) Plaintiff expressed no dissatisfaction with Defendant's complaint resolution and did not notify Defendant that it considered Defendant's performance was deficient. (Bazaz Decl., ¶ 20.)

Plaintiff contends the complaints

were not isolated, and that in at least some instances the complaints were substantiated. (Reinholtz Decl., ¶¶ 12, 16, Ex. 1.) The Gardena guards in particular were uncooperative and Reinholtz was frustrated by Defendant's failure to correct the issues. (Reinholtz Decl., ¶ 13, Ex. 2.) Plaintiff conducted a review of video footage and discovered guards engaging in unauthorized cell phone use, sleeping while on duty, arriving late or failing to arrive for shifts, and otherwise failing to perform duties for a combined 379.5 hours. (Reinholtz Decl., ¶ 22.)

In January 2025, Plaintiff sent

Defendant a 30-day Performance Review letter. (Bazaz Decl., ¶ 21, Ex. B.) Bazaz then spoke with Reinholtz, who stated the letter pertained only to the Gardena facility. (Bazaz Decl., ¶ 22.) Reinholtz stated performance at all other facilities except Hyland and 801 Hoover was satisfactory, and did not specify what was unsatisfactory at Hyland and 801 Hoover. (Bazaz Decl., ¶ 22.) Defendant replaced the Gardena facility guard team, provided specific training to the new team relating to the issues Plaintiff raised, reviewed onsite protocols and operations, and submitted written recommendations to enhance security. (Bazaz Decl., ¶ 22.) However, Plaintiff asserts that Defendant did not submit an action plan as requested, and performance did not improve. (Reinholtz Decl., ¶ 18.)

Around that time, Defendant

contends Plaintiff informed Defendant that it would contract with a new security services provider unless Defendant agreed to lower its hourly rate and take on additional tasks relating to tenant care, including administering medication. (Bazaz Decl., ¶ 23.)

Plaintiff contends it never asked

Defendant guards to administer medication to tenants and were rather directed never to administer medication. (Reinholtz Decl., ¶¶ 14-15, Ex. 3.)

On February 5, 2025, Plaintiff

removed Defendant from the Gardena facility on the basis that a guard used unjustified excessing force against a tenant. (Bazaz Decl., ¶ 24.) Defendant characterizes the event as a struggle where a guard fell while attempting to escort an intoxicated, belligerent tenant of the facility. (Bazaz Decl., ¶ 24.)

Plaintiff contends Defendant fell while dragging the tenant out of the facility, and then while in full control of the tenant, slammed the tenant to the ground. (Reinholtz Decl., ¶ 19.)

On February 14, Plaintiff issued

a notice terminating Defendant's services at Gardena and phasing out its services at two other facilities. (Reinholtz Decl., ¶ 21.) Plaintiff contends Defendant agreed to amend to the Agreement to that effect, though Plaintiff cannot locate a fully-executed amendment. (Reinholtz Decl., ¶ 21, Ex. 4.) Thereafter, Plaintiff asserts Defendant overstaffed the remaining facilities and allowed unauthorized overtime shifts. (Reinholtz Decl., ¶ 23.)

On March 19, 2025, Defendant

received a Notice of Termination from Plaintiff, effective 4pm that day. (Bazaz Decl., ¶ 28; Safyan Decl., Ex. 5.) The notice stated Defendant had not cured deficiencies in guard performance. (Bazaz Decl., ¶ 28, Ex. G.)

Defendant contends Plaintiff

failed to pay six invoices, nos. 9958, 9860, 9966, 9983, and 10157, for which it owes Defendant \$1,326,228.34. (Bazaz Decl., ¶ 36, Exs. C-E, H.)

## 2. Procedural History

On May 23, 2025, Plaintiff filed its

complaint against Defendant for breach of contract, negligence, and declaratory relief. A proof of service filed September 22, 2025, shows Plaintiff served the summons and complaint on Defendant by substituted service on July 21, 2026. On September 19, 2025, Defendant filed its answer to the complaint.

On September 19, 2025, Defendant

filed its cross-complaint against Plaintiff for breach of contract, fraud in

the inducement, and declaratory relief. On October 21, 2025, Plaintiff filed its answer to the cross-complaint.

On May 18, 2026, Defendant filed the instant application. On June 25, 2026, Plaintiff filed its opposition. On June 30, 2026 Defendant filed its reply.

II.

Applicable Law

“Upon the filing of the complaint or at any time thereafter, the [applicant] may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought.” (CCP § 484.010.)

The application shall be executed under oath and must include: (1) a statement showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued; (2) a statement of the amount to be secured by the attachment; (3) a statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based; (4) a statement that the applicant has no information or belief that the claim is discharged or that the prosecution of the action is stayed in a proceeding under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and (5) a description of the property to be attached under the writ of attachment and a statement that the [applicant] is informed and believes that such property is subject to attachment. (CCP § 484.020.)

The application for a writ of attachment must be supported “by an affidavit showing that the [applicant] on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (CCP § 484.030.)

The court shall consider the showing made by the parties, as well as the pleadings and other papers in the record. (CCP § 484.090(a), (d).) The Court shall issue a right to attach order if it finds all of the following:

“(1) The claim upon which the

attachment is based is one upon which an attachment may be issued.

(2) The [applicant] has established the probable validity of the claim upon which the attachment is based.

(3) The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

(4) The amount to be secured by the attachment is greater than zero.”

(CCP § 484.090(a)(1-4).)

At the times prescribed by CCP section 1005, subdivision (b), the defendant must be served with a copy of the summons and complaint, notice of application and hearing, and a copy of the application and supporting affidavits. (CCP § 484.040.)

“The Attachment Law statutes are subject to strict construction....” (Epstein v. Abrams (1997) 57 Cal.App.4th 1159, 1168.)

III.

Evidentiary Objections

Plaintiff objects to portions of the Bazaz Declaration. The objections to page 2, line 28 through page 3, line 2 are sustained for hearsay and lack of personal knowledge. While Plaintiff is correct that Exhibits H.1 and H.3 are improperly authenticated as stated, this appears to be a defect arising solely from misnumbering the exhibits, rather than any substantive defect. The Court directs Defendant to file a corrected declaration properly numbering the exhibits. Upon correction, the documents satisfy the standards for admissibility.

The remaining objections are overruled.

Defendant objects to a portion of

the Reinholz Declaration. The objection is overruled.

#### IV.

#### Analysis

##### 1. Claim on Which Attachment Can Be Based

“[A]n attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five hundred dollars (\$500) exclusive of costs, interest, and attorney’s fees.” (CCP § 483.010(a).) “An attachment may not be issued on a claim which is secured by any interest in real property arising from agreement ....” (CCP § 483.010(b).)

Here, Defendant’s claim against Plaintiff is premised on its cause of action for breach of the Agreement. (Mem. at 12.) Plaintiff does not oppose on this ground. Defendant may seek attachment based on its breach of contract claim.

##### 2. Fixed or Readily Ascertainable Amount

A claim is “readily ascertainable” where the damages may be readily ascertained by reference to the contract and the basis of the calculation appears to be reasonable and definite. (CIT Group/Equipment Financing, Inc. v. Super DVD, Inc. (2004) 115 Cal.App.4th 537, 540-41.) The fact that the damages are unliquidated is not determinative. (Ibid.) However, the contract must furnish a standard by which the amount may be ascertained and there must be a basis by which the damages can be determined by proof. (Ibid.)

Here, Defendant’s evidence shows Plaintiff owes \$1,303,273.92 for invoiced services rendered under the Agreement. (Bazaz Decl., ¶ 32.)

In opposition, Plaintiff argues that the amount is not measurable by reference to the Agreement, and that the basis is not reasonable and certain because the invoices include services and



charges not agreed to in the Agreement and are accompanied by registers which do not support the amount charged. (Op. at 14.)

Ultimately, Plaintiff objects to a limited subset of the items billed in the invoices, including the 3.5% merchant processing fees appearing on several invoices and the patrol vehicle services, or at least to the service occurring after contract termination. The Court agrees that nothing in the Agreement allows Defendant to apply a 3.5% merchant processing fees charge, and the patrol vehicle service includes a charge period after the contract termination.<sup>[1]</sup> (See Bazaz Decl., Exs. A, H.3.)

However, as Defendant explains in reply, Defendant did not include the merchant processing fees or the late charges in the amount sought in its application. (Reply at 3-4.) As a result, the pre-interest amount need only be reduced by the amount of the post-termination patrol vehicle services charge, which is \$33,600. (Bazaz Decl., Ex. H.3.) Therefore, the relevant amount from invoice 10157 is \$309,323 less \$33,600, or \$275,723. Consequently, the daily interest accrual on invoice no. 10157 is reduced from \$15.25 (Bazaz Decl., ¶ 31) to \$13.60, which at 340 days (Bazaz Decl., ¶ 31) amounts to \$4,624, or a \$561 reduction. Finally, the total appropriate deduction to the readily ascertainable amount is \$561 plus \$33,600, or \$34,161, making the total readily ascertainable amount \$1,292,067.34.

Accordingly, the readily ascertainable amount is \$1,292,067.34. This finding is consistent with CCP section 483.010(a), which requires that the amount be measurable by reference to the contract and supported by admissible evidence. The Agreement furnishes clear hourly rates, minimum shift requirements, and weekly patrol fees from which the Court can determine a definite calculation. With the deductions identified above, the resulting figure is sufficiently “fixed or readily ascertainable” for purposes of prejudgment attachment.

### 3. Probable Validity of Defendant's Claim

“A claim has ‘probable validity’ where it is more likely than not that the [applicant] will obtain a judgment against the defendant on that claim.” (CCP § 481.190.) “If the defendant

opposes the application, 'the court must then consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.' [Citations.]" (Pech v. Morgan (2021) 61 Cal.App.5th 841, 855.)

In evaluating probable validity, the Court does not adjudicate the ultimate merits of either party's breach of contract theories. The Court instead weighs the parties' competing factual showings to determine, on balance, whether the applicant is more likely than not to obtain judgment. (See CCP §§ 481.190, 484.090.) The Court therefore assesses the credibility, internal consistency, and relative weight of the evidence, while avoiding any determination that would amount to a final merits ruling. The analysis below is made solely for the limited purpose of determining the "probable validity" of the applicant's claim at this preliminary stage.

Here, the application is based on claims for breach of contract. To establish a claim for breach of contract, a plaintiff must prove: (1) existence of a contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach of the contract; and (4) damages incurred by plaintiff as a result of the breach. (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1367.)

In support of attachment, Defendant's evidence shows that Plaintiff and Defendant entered into the Agreement in September 2024. (Bazaz Decl., ¶ 6, Ex. A.) Defendant performed services under the Agreement and invoiced Plaintiff for those services. (Bazaz Decl., ¶¶ 26-27, 31, 34, Exs. C-E, H.) In total, Plaintiff has not paid \$1,326,228.34, inclusive of interest. (Bazaz Decl., ¶ 36.)

Defendant has established a prima facie case for breach of contract.

In opposition, Plaintiff argues that Defendant materially failed to perform its contractual obligations. While Plaintiff presents evidence of performance concerns, the Court notes that Plaintiff continued to request, accept, and rely upon Defendant's services for nearly two months after the earliest-documented incidents and did not exercise its contractual right to terminate until March 19, 2025. (Bazaz Decl., Ex. A; Reinholtz Decl., ¶¶ 11-12, 17, 24.) Plaintiff's continued use of Defendant's services, together with its own evidence acknowledging that many

facilities were operating satisfactorily, substantially undermines the weight of its argument that Defendant's alleged breaches were material and excused Plaintiff's nonpayment. At this stage, the Court does not find that Plaintiff has established a material breach or failure of performance that is likely to defeat Defendant's claim at trial. Rather, the Court finds that Plaintiff's evidence, even taken at face value, is less persuasive considering its decision to retain Defendant's services despite its stated concerns. On balance, Defendant's showing is more likely than not to prevail on the merits for purposes of "probable validity" under CCP section 484.090(a)(2).

Accordingly, Defendant has shown the probable validity of its claims for breach of the Agreement. All ultimate factual and legal determinations remain reserved for trial.

#### 4. Purpose of Attachment

The other required finding under CCP section 484.090 is that the "attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based." (CCP § 484.090(a)(3).)

Defendant declares that "[a]ttachment is not sought for a purpose other than the recovery on a claim upon which the attachment is based." (App. ¶ 4.) Plaintiff does not oppose on this ground. Attachment is sought for proper purpose.

#### 5. Bankruptcy

CCP section 484.020(d) requires a "statement that the applicant has no information or belief that the claim is discharged in a proceeding under Title 11 of the United States Code (Bankruptcy) or that the prosecution of the action is stayed in a proceeding under Title 11 of the United States Code (Bankruptcy)."

Defendant provides this statement. (App. ¶ 5.) Plaintiff does not oppose on this ground. This requirement has been satisfied.

#### 6. Claims of Exemption

No claims of exemption are sought.

#### 7. Undertaking

CCP section 489.210 requires the applicant to file an undertaking before issuance of a writ of attachment. CCP section 489.220 provides, with exceptions, for an undertaking in the amount of \$10,000. Plaintiff does not object to the amount of the undertaking. Accordingly, the Court will order an undertaking in the amount of \$10,000.

V.

#### Conclusion

Defendant's application for attachment against Plaintiff is GRANTED in the amount of \$1,292,067.34. Defendant is ordered to submit an updated proposed order to reflect the orders and findings herein. The updated proposed order must be filed and served within 3 court days.

Date: July 2, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at [email protected] with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

The objections to the remainder of the patrol vehicle service billing relates to admissibility objections the Court addressed above. The evidence is admissible and the remainder of the patrol vehicle service billing is allowed.